

### Analysis

The parties entered into a CCP 664.6 agreement, filed on 11/12/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$5,347,75, plus costs, less any credits for payments received.

The Defendant made payments of \$200.

The Motion is unopposed. There is proof of mail service to an address at Greenrock St., in Antioch. Though Defendant never filed an Answer in this matter, the Complaint does list the same address as the one used for service of this Motion; and, the Defendant did enter into an agreement in the instant matter. Thus, the Court finds that the Defendant was on notice of the cause of action in the instant matter, and that mail service of this Motion is sufficient.

### Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,147.75.

Plaintiff to file order on Motion, as well as submit Judgment.

***Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.***

**7. 9:00 AM CASE NUMBER: L25-01522  
CASE NAME: WELLS FARGO BANK, NA VS. MARITZA CARBALLO  
\*HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS  
FILED BY: WELLS FARGO BANK, NA  
\*TENTATIVE RULING:\***

### Background

Plaintiff filed a Motion for Judgment on the Pleadings. The Motion is unopposed and service was completed on counsel for Defendants.

The court granted Plaintiff's request for Admissions to be Deemed True on 10/14/25.

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that Defendant admits all statements in the complaint are true and that Defendant owes the alleged debt.

While Plaintiff addressed more than one cause of action in their Motion, this court notes that there is only one cause of action (Breach Of Contract) listed in the Complaint.

## Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Breach of Contract. Plaintiff alleged damages of \$6,196.07.

Defendant’s Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered 10/14/25 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$6,196.07. See Deemed Admitted Order.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

While the Defendant pled denials and defenses by way of the Answer, Defendant failed to raise those issues timely in response to the requests for admissions and the Deemed Admitted Order has been made by the Court and has not been set aside. Nor has Defendant opposed this Motion for Judgment on the Pleadings.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

2. Plaintiff’s Complaint, on its face and considering the Deemed Admitted Order, states

facts sufficient to constitute causes of action against the Defendant for Negligence and Subrogation.

3. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint
4. Defendant caused damages in the amount of \$6,196.07, which amount is due and owing to Plaintiff.

#### Disposition

The Court finds and orders as follows:

The Motion for Judgment on the Pleadings is GRANTED.

Plaintiff shall file electronically their Proposed Order for signature.

***Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.***

**8. 9:00 AM CASE NUMBER: L25-03343**

**CASE NAME: CITIBANK N.A. VS. CARL SNYDER**

**\*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

**FILED BY: CITIBANK N.A.**

**\*TENTATIVE RULING:\***

#### Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

#### Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint. The address was also in an attachment to the Complaint. Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.